# MUTUAL NONDISCLOSURE AGREEMENT

This Mutual Nondisclosure Agreement (the "Agreement") is entered into as of November 15, 2026 (the "Effective Date") between Glasswing Security, Inc., a Virginia corporation with offices at 1750 Tysons Boulevard, McLean, VA 22102 ("Glasswing"), and Acme Company, Inc., a Delaware corporation with offices at 400 Market Street, Suite 1200, Wilmington, DE 19801 ("Acme"). Each of them is a "party".

**Section 1 - Purpose.** The parties wish to exchange information in order to evaluate a potential managed security services relationship (the "Purpose").

**Section 2 - Confidential Information.**

2.1 "Confidential Information" means all non-public information disclosed by or on behalf of a party (the "Disclosing Party") to the other party (the "Receiving Party") in connection with the Purpose, in any form, that is identified as confidential or that a reasonable person would understand to be confidential given the nature of the information and the circumstances of its disclosure.

2.2 Information disclosed orally or visually is Confidential Information if it is identified as confidential when disclosed or would reasonably be understood to be confidential.

**Section 3 - Exclusions.**

3.1 Confidential Information does not include information that:

(a) was known to the Receiving Party without a duty of confidentiality before its disclosure, as shown by the Receiving Party's written records;

(b) is or becomes generally available to the public through no fault of the Receiving Party;

(c) is rightfully received by the Receiving Party from a third party without a duty of confidentiality; or

(d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

**Section 4 - Use and Protection.**

4.1 The Receiving Party will use Confidential Information solely for the Purpose and will protect it using at least the degree of care it uses to protect its own information of a similar nature, and in no event less than reasonable care.

4.2 The Receiving Party may disclose Confidential Information only to its directors, officers, employees, contractors and professional advisers who need to know it for the

Purpose ("Representatives") and who are bound by confidentiality obligations at least as protective as those in this Agreement. Each party is responsible for any breach of this Agreement by its Representatives.

4.3 The Receiving Party will make copies of Confidential Information only as needed for the Purpose, will keep all proprietary notices on those copies, and will promptly notify the Disclosing Party of any unauthorized use or disclosure of Confidential Information of which it becomes aware.

4.4 The Receiving Party will not reverse engineer, decompile, disassemble or analyze the composition of any prototype, sample, software or other tangible material provided by the Disclosing Party.

4.5 Neither party will use the other party's Confidential Information, or any data derived from it, for any purpose other than the Purpose.

**Section 5 - Compelled Disclosure.**

5.1 If the Receiving Party is required by law, regulation or court order to disclose Confidential Information, it will, to the extent legally permitted, give the Disclosing Party prompt written notice, reasonably cooperate, at the Disclosing Party's expense, with any effort to obtain a protective order, and disclose only the portion of the Confidential Information that it is legally required to disclose.

**Section 6 - No Licence; No Warranty.**

6.1 No licence under any patent, copyright, trade secret or other intellectual property right is granted by this Agreement, except the limited right to use Confidential Information for the Purpose. All Confidential Information is provided "as is", without any warranty of any kind.

**Section 7 - Return or Destruction.**

7.1 Within thirty (30) days after the Disclosing Party's written request, or after this Agreement terminates, the Receiving Party will return or destroy the Disclosing Party's Confidential Information and, on request, certify in writing that it has done so. The Receiving Party may keep copies in routine backup systems or as required by law, and those copies remain subject to this Agreement.

**Section 8 - Term.**

8.1 This Agreement covers disclosures made during the two (2) years following the Effective Date. The Receiving Party's obligations continue for three (3) years after each disclosure, provided that obligations with respect to trade secrets continue for as long as the information remains a trade secret under applicable law.

**Section 9 - Remedies.**

9.1 Each party acknowledges that a breach of this Agreement may cause irreparable harm for which monetary damages would not be an adequate remedy, and that the non-breaching party may seek injunctive relief in addition to any other remedy available to it.

**Section 10 - Protected Reporting.**

10.1 Nothing in this Agreement prevents either party or its personnel from reporting a possible violation of law to a government agency. Notice under 18 U.S.C. 1833(b): an individual will not be held criminally or civilly liable under any federal or state trade secret law for disclosing a trade secret in confidence to a government official or to an attorney solely for the purpose of reporting or investigating a suspected violation of law, or in a complaint or other document filed under seal in a lawsuit or other proceeding.

**Section 11 - Trade Secrets.**

11.1 Nothing in this Agreement limits either party's rights or remedies under applicable trade secret law.

**Section 12 - General.**

12.1 The existence and terms of this Agreement and of the parties' discussions are Confidential Information of both parties.

12.2 Either party may assign this Agreement without the other party's consent.

12.3 This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws rules. The state and federal courts located in Delaware have non-exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

12.4 This Agreement is the parties' entire agreement on its subject and supersedes all prior discussions on it. It may be amended only in a writing signed by both parties and may be signed in counterparts, including by electronic signature.

The parties have signed this Agreement as of the Effective Date.

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| GLASSWING SECURITY, INC. | ACME COMPANY, INC. |
| By: _____ | By: _____ |
| Name: Victor Hale | Name: Jordan Ellis |
| Title: Chief Revenue Officer | Title: Vice President, Operations |

Date: _____ Date: _____